IN THE CIRCUIT COURT OF COOK COUNTY, ILLINOIS
COUNTY DEPARTMENT - DOMESTIC RELATIONS DIVISION

IN RE THE MARRIAGE OF:	)	
	)	
JOEL THORARINSON,	)	
Petitioner/Counter-Respondent,	)	
	)	No. 2024 D 6724
v.	)	
	)	Cal. 11
HEATHER KIM ATAGAN,	)	
Respondent/Counter-Petitioner.	)	

VERIFIED PETITION FOR ADJUDICATION OF INDIRECT CIVIL CONTEMPT AND FOR OTHER RELIEF

NOW COMES the Respondent/Counter-Petitioner, HEATHER ATAGAN (hereinafter, "HEATHER"), by and through her attorneys, MEREL FAMILY LAW pursuant to 750 ILCS 5/505, 5/508, and 5/511, and this Court's inherent contempt powers, respectfully petitions this Honorable Court to issue a Rule against the Petitioner/Counter-Respondent, JOEL THORARINSON ("JOEL"), to show cause, if any he can, why he should not be held in indirect civil contempt of this Court for his failure to comply with this court's orders. In support thereof, HEATHER states as follows:

FACTS COMMON TO ALL COUNTS

1. The parties were married on August 10, 2008, in Calgary, Alberta, Canada, where the marriage was duly registered.

2. Two (2) children were born to the parties during the marriage, namely: Ariana, born April 2, 2010, currently fifteen (15) years of age; and Roman, born September 19, 2012, currently twelve (12) years of age. No other children were born to the parties or adopted, and HEATHER is not currently pregnant.

3. On September 9, 2024, JOEL filed a PETITION FOR DISSOLUTION OF MARRIAGE ("PETITION FOR DISSOLUTION") which remains pending and undetermined before the Court.

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4. On April 28, 2025, the Court entered the AGREED ORDER: OURFAMILYWIZARD and AGREED ORDER: PARENTING CONDUCT. Said agreed orders are attached herein as **Exhibit A** and **Exhibit B** respectively.

5. On April 30, 2025, the Court entered the AGREED ORDER: NO CONTACT and AGREED ORDER: TEMPORARY FINANCIAL MATTERS. Said agreed orders are attached herein as **Exhibit C** and **Exhibit D** respectively.

LAW OF CONTEMPT

6. Indirect civil contempt occurs where a party fails to do something ordered by the court, outside of the presence of the court, whereby the failing party has the method to purge the contempt by an act. *In re Marriage of Charous*, 386 Ill.App.3d 99, 107 (2d Dist. 2006).

7. The existence of an order of the trial court and the failure to comply satisfies the prima facie showing for a rule to issue, it is presumptively willful and the burden is on the failing party to demonstrate it was not. See *In re Marriage of Sharp*, 369 Ill.App.3d 271, 280 (2d Dist. 2006).

8. A party who fails to pay the allowances ordered has the burden of proving that his failure to comply was not willful or contumacious and that he has a valid excuse for his failure to pay. *Id.*

9. Section 508(b) of the IMDMA, 750 ILCS 5/508(b), provides in pertinent part as follows:

> In every proceeding for the enforcement of an order of judgment when the court finds that the failure to comply with the order or judgment was without compelling cause or justification, the court ***shall*** order the party against whom the proceeding is brought to pay promptly the costs and reasonable attorney's fees of the prevailing party.

(Emphasis added). 750 ILCS 5/508(b)

10. In any context, "[a] party who has been forced to resort to the judicial process to secure compliance with the terms of an order or judgment is entitled to her reasonable attorney fees even absent a showing of inability to pay." *In re Marriage of Irvine*, 215 III.App.3d 629, 635 (4th Dist. 1991).

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COUNT I: VIOLATION OF AGREED ORDER: OURFAMILYWIZARD

11. The AGREED ORDER: OURFAMILYWIZARD entered on April 28, 2025, states in pertinent portion as follows:

> "1) **Communication Between the Parties:**
>
> > a) The parties agree that it is in the best interests of the children for the parties to communication regarding their children via OurFamilyWizard (hereinafter referred to as "OFW")…
> >
> > e) Thereafter, the parties shall not e-mail, text, or telephone but shall post all communication with one another exclusively on OFW unless otherwise noted herein…"

See **Exhibit A.**

12. On May 11, 2025, JOEL sent numerous texts to HEATHER including demanding that she call him and admitting to having accessed her email account without HEATHER's knowledge or consent. JOEL's texts to HEATHER are attached herein as **Exhibit E.**

13. JOEL's conduct is willful and contumacious and he has no legally sufficient reason for his failure to comply with the clear terms of the AGREED ORDER: OURFAMILYWIZARD entered on April 28, 2025.

14. Accordingly, this Court should issue a rule against JOEL to show cause, if any, why he should not be held in indirect civil contempt for his willful and contumacious failure and refusal to comply with the AGREED ORDER: OURFAMILYWIZARD entered on April 28, 2025.

15. HEATHER has incurred attorney's fees and costs in the preparation and presentation of this Petition, which was necessitated solely as a result of JOEL's failure to comply with the Agreement.

WHEREFORE, the Respondent/Counter-Petitioner, HEATHER ATAGAN, respectfully requests that this Honorable Court:

A. Issue a rule to show cause, *instanter*, requiring Petitioner/Counter-Respondent, JOEL THORARINSON, to show cause, if any he can, why he should not be held in indirect

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civil contempt of court for his failure to comply with the terms of the AGREED ORDER: OURFAMILYWIZARD entered on April 28, 2025;

B. Find that JOEL THORARINSON's failure to comply with the AGREED ORDER: OURFAMILYWIZARD entered on April 28, 2025, is both willful and contumacious;

C. Hold JOEL THORARINSON in indirect civil contempt for his failure to comply with the AGREED ORDER: OURFAMILYWIZARD entered on April 28, 2025, and communicate with HEATHER ATAGAN exclusively via OurFamilyWizard;

D. Order JOEL THORARINSON to immediately purge said contempt by requiring JOEL THORARINSON to immediately cease all communication with HEATHER ATAGAN excluding communication pursuant to the AGREED ORDER: OURFAMILYWIZARD entered on April 28, 2025, via the OurFamilyWizard application;

E. Award HEATHER ATAGAN reasonable attorney's fees and costs expended in the preparation, presentation, and prosecution of the Instant Petition for Indirect Civil Contempt in accordance with Section 508(b) of the IMDMA, 750 ILCS 5/508(b); and

F. Order such other and further relief as this Court deems just and equitable.

COUNT II: VIOLATION OF AGREED ORDER: PARENT CONDUCT

16. HEATHER restates and realleges Paragraphs 1-16 as though fully restated verbatim herein as Paragraph 17.

17. The AGREED ORDER: PARENT CONDUCT entered on April 28, 2025, states in pertinent portion as follows:

> "1) **Regarding the Minor Children:**
>
> a) Each of the parties, their agents, servants, employees and/or family members are restrained and enjoined from…
>
> v) Questioning, discussing, examining and/or interrogating the minor children with regard to the conduct, habits, social activities, monetary expenditures, purchases, etc. of the other party.
>
> vi) Engaging in any and all forms of audio and/or video recording, taping and/or any other form of electronic surveillance of the other party and/or the minor children, regardless of whether such conduct is known or unknown, overt or covert, voluntary or involuntary, excluding normal home security footage that either party may have in place…"

See **Exhibit B.**

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18. On May 11, 2025, JOEL sent numerous texts to HEATHER including demanding that she call him and admitting to having accessed her email account without HEATHER's knowledge or consent. JOEL's texts to HEATHER are attached herein as **Exhibit E.**

19. On May 11, 2025, JOEL accessed HEATHER Gmail account without her knowledge or consent and forwarded himself numerous emails and files from HEATHER's account, including but not limited to **privileged emails between HEATHER and her attorneys**. JOEL's emails from HEATHER's Gmail account are attached herein as **Group Exhibit F.**

20. Also on May 11, 2025, JOEL accessed HEATHER's Google Drive account without her knowledge or consent and deleted all files saved to the account. Notice of deleted files is attached herein as **Exhibit G.**

21. JOEL also attempted to change HEATHER's password for her Google account, without her knowledge or consent. Email and text from Google notifying HEATHER of the same are attached herein as **Exhibit H.**

22. JOEL's conduct on May 11, 2025, clearly interferes with HEATHER's personal liberty and demonstrates him engaging in electronic surveillance, in violation of the AGREED ORDER: PARENT CONDUCT entered on April 28, 2025.

23. On May 19, 2025, JOEL sent emails to HEATHER **and the parties' daughter, Ariana,** questioning HEATHER regarding monthly expenses and costs, in clear violation of the AGREED ORDER: PARENT CONDUCT. JOEL's emails to HEATHER and Ariana sent on May 19, 2025, at attached herein as **Exhibit I.**

24. JOEL's conduct is willful and contumacious and he has no legally sufficient reason for his failure to comply with the clear terms of the AGREED ORDER: PARENT CONDUCT entered on April 28, 2025.

25. Accordingly, this Court should issue a rule against JOEL to show cause, if any, why

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he should not be held in indirect civil contempt for his willful and contumacious failure and refusal to comply with the AGREED ORDER: PARENT CONDUCT entered on April 28, 2025.

26. HEATHER has incurred attorney's fees and costs in the preparation and presentation of this Petition, which was necessitated solely as a result of JOEL's failure to comply with the Agreement.

WHEREFORE, the Respondent/Counter-Petitioner, HEATHER ATAGAN, respectfully requests that this Honorable Court:

A. Issue a rule to show cause, *instanter*, requiring Petitioner/Counter-Respondent, JOEL THORARINSON, to show cause, if any he can, why he should not be held in indirect civil contempt of court for his failure to comply with the terms of the AGREED ORDER: PARENT CONDUCT entered on April 28, 2025;

B. Find that JOEL THORARINSON's failure to comply with the AGREED ORDER: PARENT CONDUCT entered on April 28, 2025, is both willful and contumacious;

C. Hold JOEL THORARINSON in indirect civil contempt for his failure to comply with the AGREED ORDER: PARENT CONDUCT entered on April 28, 2025, and refrain from interfering with HEATHER ATAGAN's personal liberty and engaging in electronic surveillance;

D. Order JOEL THORARINSON to immediately purge said contempt by requiring JOEL THORARINSON to immediately cease all interference with HEATHER ATAGAN's personal liberty and engaging in electronic surveillance;

E. Award HEATHER ATAGAN reasonable attorney's fees and costs expended in the preparation, presentation, and prosecution of the Instant Petition for Indirect Civil Contempt in accordance with Section 508(b) of the IMDMA, 750 ILCS 5/508(b); and

F. Order such other and further relief as this Court deems just and equitable.

COUNT III: VIOLATION OF AGREED ORDER: NO CONTACT

27. HEATHER restates and realleges Paragraphs 1-26 as though fully restated verbatim herein as Paragraph 27.

28. The AGREED ORDER: NO CONTACT entered on April 30, 2025, states in pertinent portion as follows:

"1. The Petitioner/Counter-Respondent, JOEL THORARINSON, is prohibited,

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> enjoined and restrained from committing any of the following acts towards the Respondent/Counter-Petitioner, HEATHER ATAGAN, harassment, interference with personal liberty, physical abuse, verbal abuse, willful deprivation, neglect or exploitation as defined in the Illinois Domestic Violence Act or stalking as defined in Section 12-7.3 of the Illinois Criminal Code of 1992…"

See **Exhibit C.**

29. On May 11, 2025, JOEL accessed HEATHER Gmail account without her knowledge or consent and forwarded himself numerous emails and files from HEATHER's account, including but not limited to **privileged emails between HEATHER and her attorneys**. JOEL's emails from HEATHER's Gmail account are attached herein as **Group Exhibit F.**

30. On May 11, 2025, JOEL accessed HEATHER Gmail account without her knowledge or consent and forwarded himself numerous emails and files from HEATHER's account. JOEL's emails from HEATHER's Gmail account are attached herein as **Group Exhibit F.**

31. Also on May 11, 2025, JOEL accessed HEATHER's Google Drive account without her knowledge or consent and deleted all files saved to the account. Notice of deleted files is attached herein as **Exhibit G.**

32. JOEL also attempted to change HEATHER's password for her Google account, without her knowledge or consent. Email and text from Google notifying HEATHER of the same are attached herein as **Exhibit H.**

33. JOEL's conduct on May 11, 2025, clearly interferes with HEATHER's personal liberty and demonstrates his harassment of HEATHER, in violation of the AGREED ORDER: NO CONTACT entered on April 30, 2025.

34. On May 19, 2025, JOEL sent emails to HEATHER **and the parties' daughter, Ariana,** questioning HEATHER regarding monthly expenses and costs, in clear violation of the AGREED ORDER: NO CONTACT. JOEL's emails to HEATHER and Ariana sent on May 19, 2025, at attached herein as **Exhibit I.**

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35. JOEL's conduct is willful and contumacious and he has no legally sufficient reason for his failure to comply with the clear terms of the AGREED ORDER: NO CONTACT entered on April 30, 2025.

36. Accordingly, this Court should issue a rule against JOEL to show cause, if any, why he should not be held in indirect civil contempt for his willful and contumacious failure and refusal to comply with the AGREED ORDER: NO CONTACT entered on April 30, 2025.

37. HEATHER has incurred attorney's fees and costs in the preparation and presentation of this Petition, which was necessitated solely as a result of JOEL's failure to comply with the Agreement.

WHEREFORE, the Respondent/Counter-Petitioner, HEATHER ATAGAN, respectfully requests that this Honorable Court:

A. Issue a rule to show cause, *instanter*, requiring Petitioner/Counter-Respondent, JOEL THORARINSON, to show cause, if any he can, why he should not be held in indirect civil contempt of court for his failure to comply with the terms of the AGREED ORDER: NO CONTACT entered on April 30, 2025;

B. Find that JOEL THORARINSON's failure to comply with the AGREED ORDER: NO CONTACT entered on April 30, 2025, is both willful and contumacious;

C. Hold JOEL THORARINSON in indirect civil contempt for his failure to comply with the AGREED ORDER: NO CONTACT entered on April 30, 2025, and refrain from interfering with HEATHER ATAGAN's personal liberty and his harassment of HEATHER ATAGAN;

D. Order JOEL THORARINSON to immediately purge said contempt by requiring JOEL THORARINSON to immediately cease all interference with HEATHER ATAGAN's personal liberty and his harassment of HEATHER ATAGAN;

E. Award HEATHER ATAGAN reasonable attorney's fees and costs expended in the preparation, presentation, and prosecution of the Instant Petition for Indirect Civil Contempt in accordance with Section 508(b) of the IMDMA, 750 ILCS 5/508(b); and

F. Order such other and further relief as this Court deems just and equitable.

COUNT IV: VIOLATION OF AGREED ORDER: TEMPORARY FINANCIAL MATTERS

38. HEATHER restates and realleges Paragraphs 1-36 as though fully restated verbatim

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herein as Paragraph 37.

39. The AGREED ORDER: TEMPORARY FINANCIAL MATTERS entered on April 30, 2025, states in pertinent portion as follows:

"1. Temporary Restraining Order:

a. Effective immediately, the Petitioner/Counter-Respondent, JOEL THORARINSON, is hereby restrained from accessing, transacting, withdrawing, transferring, dissipating or otherwise engaging with funds held in the parties' marital bank accounts, investment accounts, brokerage accounts, retirement accounts, stocks, bonds, life insurance policies, and the like, including but not limited to accounts held at JP Morgan Chase Bank, and Revolut Bank, until further order of Court.

b. JOEL's Revolut Checking Account x 9026and the Joint JP Morgan Checking Account x2151 shall not be restrained by the terms of this *instant* order.

c. JOEL's Revolut Checking Account x 9026 and the Joint JP Morgan Checking Account x2151 shall only be utilized by the parties for the payment of expenses consistent with the status quo established during the parties' marriage. Any expenses not consistent with the status quo shall be agreed upon by the parties in writing, through counsel, prior to the payment of said expenses.

d. Counsel for the Respondent/Counter-Petitioner shall serve this instant order to any and all financial institutions where it is believed that marital assets are currently held or were previously held.

2. Temporary Support:

a. Without prejudice to either party and without prejudice to any claim of retroactive maintenance and/or child support, contribution to child-related expenses, and contribution to other marital expenses, and recalculation of any maintenance or child support, retroactive or otherwise, JOEL shall pay to HEATHER the amount of $10,000.00, as and for temporary maintenance on or before the 1st of each month, beginning May 1, 2025. Accordingly, JOEL shall deposit $10,000.00 into the Joint JP Morgan Checking Account x2151 before 5:00pm on the 1st of each month until further order or court.

b. In the event that JOEL receives any additional income that exceeds his base salary of $250,000.00 gross income per year, JOEL shall transfer fifty-percent (50%) of the same to the Joint JP Morgan Checking Account x2151 and a paystub evidencing JOEL's receipt of said bonus within fourteen (14) days of receipt of the same.

c. JOEL shall not access, transact, transfer, withdraw, or otherwise engage with the JP Morgan Checking Account x2151 excluding the deposits detailed herein."

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See **Exhibit D.**

40. On April 30, 2025, JOEL deposited $10,000.00 into the Joint JP Morgan Checking Account x2151 in compliance with the AGREED ORDER: TEMPORARY FINANCIAL MATTERS entered on April 30, 2025.

41. Since April 30, 2025, JOEL has transacted in the Joint JP Morgan Checking Account x2151 multiple times in violation of the AGREED ORDER: TEMPORARY FINANCIAL MATTERS entered on April 30, 2025. Specifically:

a. May 7, 2025, JOEL paid $3,900.00 to his Chase Credit Card;

b. On May 7, 2025, JOEL paid $84.98 to his American Express Credit Card; and

c. On May 9, 2025, JOEL paid $35.00 to his American Express Credit Card.

42. On May 11, 2025, JOEL also sent HEATHER a text stating "working with Mercedes to drop the lease…" See **Exhibit E.**

43. JOEL's conduct clearly violates the terms of the AGREED ORDER: TEMPORARY FINANCIAL MATTERS entered on April 30, 2025, as he is unilaterally altering the status quo and transacting in the JP Morgan Account x2151.

44. Further, JOEL continues to threaten to unilaterally alter the financial status quo including threatening to liquidate assets, canceling the mortgage for the marital residence, and otherwise acting contrary to the terms of the AGREED ORDER: TEMPORARY FINANCIAL MATTERS entered on April 30, 2025, as detailed in **Exhibit E.**

45. JOEL's conduct is willful and contumacious and he has no legally sufficient reason for his failure to comply with the clear terms of the AGREED ORDER: TEMPORARY FINANCIAL MATTERS entered on April 30, 2025.

46. Accordingly, this Court should issue a rule against JOEL to show cause, if any, why he should not be held in indirect civil contempt for his willful and contumacious failure and refusal to

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comply with the AGREED ORDER: TEMPORARY FINANCIAL MATTERS entered on April 30, 2025.

47. HEATHER has incurred attorney's fees and costs in the preparation and presentation of this Petition, which was necessitated solely as a result of JOEL's failure to comply with the Agreement.

WHEREFORE, the Respondent/Counter-Petitioner, HEATHER ATAGAN, respectfully requests that this Honorable Court:

A. Issue a rule to show cause, *instanter*, requiring Petitioner/Counter-Respondent, JOEL THORARINSON, to show cause, if any he can, why he should not be held in indirect civil contempt of court for his failure to comply with the terms of the AGREED ORDER: TEMPORARY FINANCIAL MATTERS entered on April 30, 2025;

B. Find that JOEL THORARINSON's failure to comply with the AGREED ORDER: TEMPORARY FINANCIAL MATTERS entered on April 30, 2025, is both willful and contumacious;

C. Hold JOEL THORARINSON in indirect civil contempt for his failure to comply with the AGREED ORDER: TEMPORARY FINANCIAL MATTERS entered on April 30, 2025, and refraining transacting, transferring, withdrawing, or otherwise engaging with the JP Morgan Checking Account x2151, and taking steps to terminate the lease on a marital vehicle;

D. Order JOEL THORARINSON to immediately purge said contempt by requiring JOEL THORARINSON to immediately refraining transacting, transferring, withdrawing, or otherwise engaging with the JP Morgan Checking Account x2151 and deposit $3,900.00 into the JP Morgan Checking Account x2151;

E. Order JOEL THORARINSON to immediately purge said contempt by requiring JOEL THORARINSON to immediately reinstating the lease on the Mercedes and/or ceasing all attempts to terminate the lease associated with the Mercedes;

F. Order JOEL THORARINSON to immediately purge said contempt by requiring JOEL THORARINSON to immediately cease all interference with any and all financial matters relating to marital assets, debts, and liabilities;

G. Award HEATHER ATAGAN reasonable attorney's fees and costs expended in the preparation, presentation, and prosecution of the Instant Petition for Indirect Civil Contempt in accordance with Section 508(b) of the IMDMA, 750 ILCS 5/508(b); and

H. Order such other and further relief as this Court deems just and equitable.

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Respectfully Submitted,
MEREL FAMILY LAW

ANNEMARIE TARARA

MEREL FAMILY LAW
Attorneys for Respondent/Counter-Petitioner
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(312) 408-7000
notice@merelfamilylaw.com
Attorney No. 45550

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VERIFICATION

Under penalties as provided by law pursuant to 735 ILCS 5/1-109, I, **HEATHER KIM ATAGAN,** being first duly sworn and on oath depose and state that I am the Respondent/Counter-Petitioner in the above-captioned matter; that I have read the foregoing pleading and have knowledge of the contents thereof; and that the statements set forth in this instrument are true and correct, except as to matters therein stated to be on information and belief and as to such matters I certify as aforesaid that I verily believe the same to be true.

HEATHER KIM ATAGAN
Respondent/Counter-Petitioner

MEREL FAMILY LAW
Attorneys for Respondent/Counter-Petitioner
440 W. Randolph St., 5th Floor
Chicago, IL 60606
(312) 408-7000
notice@merelfamilylaw.com
Attorney No. 45550

Doc ID: 1225026638416468a7bc0a66faed1ecc1616f394

EXHIBIT
A

IN THE CIRCUIT COURT OF COOK COUNTY, ILLINOIS
COUNTY DEPARTMENT - DOMESTIC RELATIONS DIVISION

IN RE THE MARRIAGE OF	)	
	)	
JOEL THORARINSON,	)	
Petitioner/Counter-Respondent,	)	
	)	No. 2024 D 6724
v.	)	
	)	Cal. 11
HEATHER KIM ATAGAN,	)	
Respondent/Counter-Petitioner.	)	

AGREED ORDER:
OURFAMILYWIZARD

THIS MATTER coming before the Court by agreement of the parties; both parties being represented by counsel, the Court having jurisdiction over the subject matter hereof and the parties hereto; and the Court being duly and fully advised in the premises:

IT IS HEREBY ORDERED:

1) **Communication Between the Parties:**

a) The parties agree that it is in the best interest of the children for the parties to communicate regarding their children via OurFamilyWizard® (hereinafter referred to as "OFW"). The parties are ordered to each establish an OFW Parent Account. Each shall enroll in the program within forty-eight (48) hours of the entry of this *instant* order. The parties shall enroll by completing the sign-up process at OurFamilyWizard.com or by contacting OFW Customer Support.

b) The parties shall ensure that they have an OFW package that enables them to utilize OFW in the manner outlined herein.

c) After registration, the parties shall immediately begin to utilize their OFW accounts via the website at OurFamilyWizard.com or via the OFW mobile applications for iOS or Android.

d) The parties shall include the ToneMeter™ add-on with their OFW subscription. ToneMeter™ will be used when composing entries to encourage cordial and productive communication.

e) Thereafter, the parties shall not e-mail, text, or telephone but shall post all communication with one another exclusively on OFW unless otherwise noted herein.

f) The parties shall be allowed to communicate by telephone only in matters of emergency regarding the child that must be acted upon in less than 24 hours. In case of such an emergency, the subject and general content of such communication shall be memorialized in

a Moment entry in the OFW Journal. If this box is not checked, the parties shall not be able to communicate by any means other than OFW, even in the case of an emergency.

g) The utilization of OFW shall not be deemed as a per se violation of the provisions of the AGREED ORDER: MUTUAL RESTRAINING ORDER, entered contemporaneously with this *instant* order.

h) Whenever an entry requires a response, the receiving parent shall respond within 48 hours unless the entry itself indicates that a longer time frame is acceptable.

i) Professional Access shall be granted by each party to their respective attorney(s) of record.

j) Unless or until there is a signed Order of this Court ending the parties' utilization of OFW or the youngest of the parties' children reaches the age of 18, neither party shall fail to renew his or her annual OFW subscription.

2) The terms of this Order shall remain in full force and effect until further Order of Court.

3) This Order is entered by agreement and on a temporary basis and is without prejudice.

ENTERED:

JUDGE 2302

4-28-25

MEREL FAMILY LAW
Attorneys for Respondent/Counter-Petitioner
440 W. Randolph St., 5th Floor
Chicago, IL 60606
(312) 408-7000
notice@merelfamilylaw.com
Attorney No. 45550

ENTERED
Judge Matthew Jannusch-2302
APR 28 2025
CLERK OF THE CIRCUIT COURT OF COOK COUNTY, IL
Deputy Clerk

Petitioner/Counter-Respondent's Attorney: jconniff@jacfamilylaw.com

EXHIBIT
B

IN THE CIRCUIT COURT OF COOK COUNTY, ILLINOIS
COUNTY DEPARTMENT - DOMESTIC RELATIONS DIVISION

IN RE THE MARRIAGE OF	)	
	)	
JOEL THORARINSON,	)	
Petitioner/Counter-Respondent,	)	
	)	No. 2024 D 6724
v.	)	
	)	Cal. 11
HEATHER KIM ATAGAN,	)	
Respondent/Counter-Petitioner.	)	

AGREED ORDER:
PARENT CONDUCT

THIS MATTER coming before the Court by agreement of the parties; both parties being represented by counsel, the Court having jurisdiction over the subject matter hereof and the parties hereto; and the Court being duly and fully advised in the premises:

IT IS HEREBY ORDERED:

1) **Regarding the Minor Children:**

a) Each of the parties, their agents, servants, employees and/or family members are restrained and enjoined from:

i) Beating, striking, threatening, molesting, surveilling and/or in any manner interfering with the personal liberty of the other party and/or the minor children;

ii) Discussing any aspect of the pending litigation directly with minor children. "Any aspect of the litigation" includes, but is not limited to:

(1) Allocation of Parental Responsibilities (Temporary or Permanent)
(2) Parenting Time
(3) Support
(4) Grounds for prior dissolution
(5) Monetary (financial information)
(6) Vacations
(7) Court dates

iii) Questioning and/or discussing with the minor children the preferences of the children as to allocation of parental responsibilities and parenting time.

iv) Questioning and/or discussing, rehearsing and/or coaching the minor children with regard to court testimony, interviews with the Court, mediators, intervenors, attorneys' investigators, social workers, treating and/or examining professionals and any and all other persons having any relationship and/or function with regard to the pending litigation.

v) Questioning, discussing, examining and/or interrogating the minor children with regard to the conduct, habits, social activities, monetary expenditures, purchases, etc. of the other party.

vi) Engaging in any and all forms of audio and/or video recording, taping and/or any other form of electronic surveillance of the other party and/or of the minor children, regardless of whether such conduct is known or unknown, overt or covert, voluntary or involuntary, excluding normal home security footage that either party may have in place.

vii) Using, consuming alcohol to excess and/or non-prescription drugs while in the presence of the minor children.

viii) Criticizing, demeaning, disparaging and/or placing either party in a negative light with regard to the minor children.

ix) Questioning the children regarding what they do while they are with the other parent or ask any questions at all relative to the other parent.

2) The terms of this Order shall remain in full force and effect until further Order of Court.

3) This Order is entered by agreement and on a temporary basis and is without prejudice.

ENTERED:

JUDGE

4-28-25

2302

ENTERED
Judge Matthew Jannusch-2302
APR 28 2025
CLERK OF THE CIRCUIT COURT OF COOK COUNTY, IL
Deputy Clerk

MEREL FAMILY LAW
Attorneys for Respondent/Counter-Petitioner
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Attorney No. 45550

Petitioner/Counter-Respondent's Attorney: jconniff@jacfamilylaw.com

EXHIBIT
C

IN THE CIRCUIT COURT OF COOK COUNTY, ILLINOIS
COUNTY DEPARTMENT - DOMESTIC RELATIONS DIVISION

IN RE THE MARRIAGE OF	)	
	)	
JOEL THORARINSON,	)	
Petitioner/Counter-Respondent,	)	
	)	No. 2024 D 6724
v.	)	
	)	Cal. 11
HEATHER KIM ATAGAN,	)	
Respondent/Counter-Petitioner.	)	

AGREED ORDER:
NO CONTACT

THIS MATTER coming before the Court by agreement of the parties; both parties being represented by counsel, the Court having jurisdiction over the subject matter hereof and the parties hereto; and the Court being duly and fully advised in the premises:

IT IS HEREBY ORDERED:

1. The Petitioner/Counter-Respondent, JOEL THORARINSON, is prohibited, enjoined and restrained from committing any of the following acts towards the Respondent/Counter-Petitioner, HEATHER ATAGAN, harassment, interference with personal liberty, physical abuse, verbal abuse, willful deprivation, neglect or exploitation as defined in the Illinois Domestic Violence Act or stalking as defined in Section 12-7.3 of the Illinois Criminal Code of 1992.

2. JOEL is prohibited, enjoined, and restrained from contacting the parties' minor children in any way including via call, text, WhatsApp, social media, or any other form of communication. If either of the parties' minor children contact JOEL, JOEL shall be able to respond and shall interact appropriately at all times with the minor children.

3. HEATHER is allocated all parenting time with the minor children until further order of Court and shall be solely responsible for all major decision making as it relates to the children's education, medical and healthcare, extracurricular activities, and other day-to-day decisions.

4. This order is entered on a temporary basis and without prejudice.

AGREED:

JOEL THORARINSON

HEATHER ATAGAN

Doc ID: 1693ef2b6c4e4fe9c6ba9b4b707cd757f3da0c48

ENTERED:

JUDGE

4-30-25

2302

MEREL FAMILY LAW
Attorneys for Respondent/Counter-Petitioner
440 W. Randolph St., 5th Floor
Chicago, IL 60606
(312) 408-7000
notice@merelfamilylaw.com
Attorney No. 45550
John Conniff: jconniff@jacfamilylaw.com

ENTERED
Judge Matthew Jannusch-2302
APR 30 2025
CLERK OF THE CIRCUIT COURT
OF COOK COUNTY, IL
Deputy Clerk

EXHIBIT
D

IN THE CIRCUIT COURT OF COOK COUNTY, ILLINOIS
COUNTY DEPARTMENT - DOMESTIC RELATIONS DIVISION

IN RE THE MARRIAGE OF	)	
	)	
JOEL THORARINSON,	)	
Petitioner/Counter-Respondent,	)	
	)	No. 2024 D 6724
v.	)	
	)	Cal. 11
HEATHER KIM ATAGAN,	)	
Respondent/Counter-Petitioner.	)	

AGREED ORDER:
TEMPORARY FINANCIAL MATTERS

THIS MATTER coming before the Court by agreement of the parties; both parties being represented by counsel, the Court having jurisdiction over the subject matter hereof and the parties hereto; and the Court being duly and fully advised in the premises:

IT IS HEREBY ORDERED:

1) **Temporary Restraining Order:**

a) Effective immediately, the Petitioner/Counter-Respondent, JOEL THORARINSON, is hereby restrained from accessing, transacting, withdrawing, transferring, dissipating or otherwise engaging with funds held in the parties' marital bank accounts, investment accounts, brokerage accounts, retirement accounts, stocks, bonds, life insurance policies, and the like, including but not limited to accounts held at JP Morgan Chase Bank, and Revolut Bank, until further order of Court.

b) JOEL's Revolut Checking Account x 9026 and the Joint JP Morgan Checking Account x2151 shall not be restrained by the terms of this *instant* order.

c) JOEL's Revolut Checking Account x 9026 and the Joint JP Morgan Checking Account x2151 shall only be utilized by the parties for the payment of expenses consistent with the status quo established during the parties' marriage. Any expenses not consistent with the status quo shall be agreed upon by the parties in writing, through counsel, prior to the payment of said expenses.

d) Counsel for the Respondent/Counter-Petitioner shall serve this instant order to any and all financial institutions where it is believed that marital assets are currently held or were previously held.

2) **Temporary Support:**

a) Without prejudice to either party and without prejudice to any claim of retroactive maintenance and/or child support, contribution to child-related expenses, and contribution

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to other marital expenses, and recalculation of any maintenance or child support, retroactive or otherwise, JOEL shall pay to HEATHER the amount of $10,000.00, as and for temporary maintenance on or before the 1st of each month, beginning May 1, 2025. Accordingly, JOEL shall deposit $10,000.00 into the Joint JP Morgan Checking Account x2151 before 5:00pm on the 1st of each month until further order or court.

b) In the event that JOEL receives any additional income that exceeds his base salary of $250,000.00 gross income per year, JOEL shall transfer fifty-percent (50%) of the same to the Joint JP Morgan Checking Account x2151 and a paystub evidencing JOEL's receipt of said bonus within fourteen (14) days of receipt of the same.

c) JOEL shall not access, transact, transfer, withdraw, or otherwise engage with the JP Morgan Checking Account x2151 excluding the deposits detailed herein.

3) **Interim Attorneys' Fees:**

a) An interim fee award of $15,000.00 is entered in favor of HEATHER ATAGAN, to be paid by JOEL THORARINSON to HEATHER's counsel, MEREL FAMILY LAW, for reasonable attorney's fees and costs.

b) By 5:00pm on May 1, 2025, JOEL THORARINSON shall tender a $15,000.00 payment directly to MEREL FAMILY LAW as and for interim attorney's fees and costs.

c) By 5:00 p.m. on May 1, 2025, JOEL THORARINSON shall pay $15,000.00 to THE LAW OFFICES OF JOHN CONNIFF as and for interim attorneys fees and costs.

d) The assessment of the interim fee award is without prejudice to any final allocation and without prejudice as to any claim or right of either party.

AGREED:

JOEL THORARINSON

HEATHER ATAGAN

ENTERED:

JUDGE

2302

4-30-25

MEREL FAMILY LAW
Attorneys for Respondent/Counter-Petitioner
440 W. Randolph St., 5th Floor
Chicago, IL 60606
(312) 408-7000
notice@merelfamilylaw.com
Attorney No. 45550
Counsel for Petitioner/Counter-Respondent:: jconniff@jacfamilylaw.com

ENTERED
Judge Matthew Jannusch-2302
APR 30 2025
CLERK OF THE CIRCUIT COURT OF COOK COUNTY, IL
Deputy Clerk

Doc ID: 1693ef2b6c4e4fe9c6ba9b4b707cd757f3da0c48

EXHIBIT
E

10:36 73

Joel Thorarinson

3:41 PM

I pray for you every day 3:42 PM

Yesterday

Happy Mothers Day 1:26 AM

1:26 AM

I need the login information for the self storage, moving everything out of both the CT one and the there. 4:01 AM

I'll have people do it so you don't need to look at those paintings, they can also come to the house and collect all my work. 4:02 AM

You can run your own storage after that. I'd like all my paintings destroyed. 4:02 AM

Working with Mercedes to drop the lease, clearly we cannot afford that with all you've spent on lawyers. 4:03 AM

I need the text to your phone number to cancel RocketMoney 4:07 AM

10:37

Joel Thorarinson

There is a target credit card, does that come out of your account? If so I will just leave that . 4:09 AM

We have now about 3 months max to bankruptcy, but maybe you can take the 401k out if you need more. 4:10 AM

For now I am just closing everything I can. 4:11 AM

Simplesafe if you'd like to keep can you move to your account? 4:13 AM

Let make it a goal that we have no shared finances. I've already said you can have everything left. Which means the house and the 401k, and the obligations to repay the 100k to it. 4:14 AM

You have already cash in your business account and 500k equity in the house so you are about 15x more wealthy than me! 4:15 AM

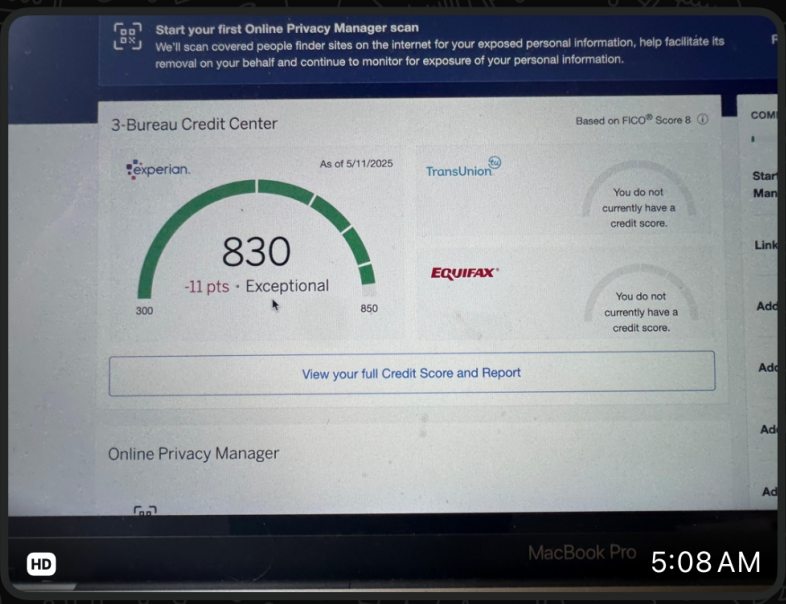
I can't force you to collaborate with me on this. Please be understanding. I can't work till this is solved. That means no more money, and no more health care. 4:18 AM

We've already donated enough the the attorneys retirement fund 4:19 AM

Amazon acccount and prime is

8:02 5G 75

Joel Thorarinson



Reminder where we were for posterity 5:08 AM

Can you please call me. 5:35 AM

It seems you've decided that you want me in jail and to not know our children. If that's your choice then I can't do much else.

Do you realize you will put me in jail and I will not be able to do anything to help you? 5:36 AM

Also word of advice, you are supposed to update your email account passwords! Come on Heather! 5:38 AM

You can't run a new company without good security protocols. 5:39 AM

Maybe someday you'll realize the Joel you know still exists. 5:40 AM

8:01 5G 75

EXHIBIT F

(no subject) Inbox

me 5:15 AM
to Joel

From Heather Atagan heather.atagan@gmail.com

To Joel Thorarinson joel.thorarinson@gmail.com

Date May 11, 2025 at 5:15 AM

- "Powerful, actor-centered, intense and impactful".eml
- "Urgent".eml
- 878332 Is Your Child's Roblox One-Time Code.eml
- A new device is using your account.eml
- Action needed: Verify your recently changed phone number.eml
- Confirming Your Upcoming Appointment at Chicago Dental Esthetics.eml
- Draft 1 of Financial Affidavit.eml
- Email verification code.eml
- Ending SO soon: up to 50% off qualified orders. Don't miss it!.eml
- Flex Receipt.eml
- Foodie, unlock your exclusive savings and top picks!.eml
- Fwd: Confidential - Eisler Capital.eml
- Fwd: Eisler Capital | Joel Thorarinson - Skilled Worker | In progress.eml

Reply Forward

Google Sheets

EXHIBIT
G

Sorry, the file you have requested has been deleted.

Make sure that you have the correct URL and the owner of the file hasn't deleted it.

Get stuff done with Google Drive

Apps in Google Drive make it easy to create, store and share online documents, spreadsheets, presentations and more.

Learn more at drive.google.com/start/apps.

EXHIBIT
H

Critical security alert

Inbox

Google 5:48 AM

to me

Translate to Dutch

Google

Someone tried to change your password

heather.atagan@gmail.com

Google stopped this attempt, but if this wasn't you, someone else has access to your account. Check and secure your account now.

Check activity

You can also see security activity at
https://myaccount.google.com/notifications

EXHIBIT
I

Cora Leeuwenburg

From: Cora Leeuwenburg
Sent: Monday, May 19, 2025 3:09 PM
To: Cora Leeuwenburg
Subject: FW: Fwd:

---------- Forwarded message ---------
From: **Joel Thorarinson** <joel.thorarinson@gmail.com>
Date: Mon, May 19, 2025 at 12:49 PM
Subject: Re:
To: <heather.atagan@gmail.com>, Ariana Thorarinson <ata10thor@gmail.com>

2. Heather Atagan $70000 1800

Do you know what “balance due” means? What is the length of the lease? What is the monthly payment? Multiply because it’s not 1800

You studied in Princeton!!

> On May 19, 2025, at 20:44, Joel Thorarinson <joel.thorarinson@gmail.com> wrote:
>
> I need the papers you signed for the car, the Mercedes, can you please send those, you know the things you said I have complete control over....
>
> > On May 19, 2025, at 20:34, Joel Thorarinson <joel.thorarinson@gmail.com> wrote:
> >
> > You literally signed your name to something you know to be incorrect.
> >
> > I want you to take ownership of your lies Heather.
> >
> > <image0.png>